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February 11, 2025

SENATE BILL NO. 146

By: Murdock of the Senate

and

Newton of the House

An Act relating to the Department of Public Safety; amending Sections 1 and 2, Chapter 165, O.S.L. 2022 (74 O.S. Supp. 2024, Sections 9101 and 9102), which relate to the Mental Wellness Division; expanding scope of eligibility; updating statutory reference; updating statutory language; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 1, Chapter 165, O.S.L.
2022 (74 O.S. Supp. 2024, Section 9101), is amended to read as
follows:

Section 9101. A. The Department of Public Safety shall establish and maintain a Mental Wellness Division to provide mental wellness services and programs to public safety personnel and retirees thereof to promote good mental wellness. The Commissioner of Public Safety shall appoint the Director of the Mental Wellness Division.

B. The Director of the Mental Wellness Division shall report to the Commissioner. All current and former employees of the Mental

1 Wellness Division shall maintain the privacy of all public safety
2 personnel served by the Division or who participate in its programs.
3 No privileged personal health information shall ever be shared with
4 the Commissioner or made public without the consent of that person.
5 However, aggregate mental health information may be shared with the
6 Commissioner. Aggregate mental health information may be made
7 public by the Commissioner if, in the judgment of the Commissioner,
8 doing so could improve public safety mental wellness policies for
9 public safety personnel and the information is made public for this
10 sole purpose. Provided, no aggregate mental health information may
11 be shared or made public if doing so could reveal otherwise
12 privileged personal mental health information about any specific
13 individual. It shall be the duty of the Director of the Division to
14 establish the necessary policies and procedures to ensure the
15 privacy and confidentiality requirements of this section and of all
16 other applicable health privacy laws. Any breach of the privacy
17 provisions of this section and of any other applicable health
18 privacy laws must be timely and thoroughly investigated and the
19 appropriate disciplinary and corrective actions taken.

20 C. The Mental Wellness Division is authorized to enter into
21 partnerships with private entities to fulfill its mandate.

22 D. The offices, records, communications, information
23 technology, equipment, and any other resources of the Mental
24

1 Wellness Division shall be located and maintained separately from
2 that of the other divisions within the Department.

3 SECTION 2. AMENDATORY Section 2, Chapter 165, O.S.L.
4 2022 (74 O.S. Supp. 2024, Section 9102), is amended to read as
5 follows:

6 Section 9102. There is hereby created in the State Treasury a
7 revolving fund for the Department of Public Safety on behalf of the
8 Mental Wellness Division of the Department of Public Safety to be
9 designated the "Mental Wellness Division Revolving Fund". The fund
10 shall be a continuing fund, not subject to fiscal year limitations,
11 and shall consist of those monies appropriated to the fund by law or
12 deposited in the fund as provided pursuant to the provisions of
13 ~~Section 3 of this act~~ 9103 of this title. All monies accruing to
14 the credit of the fund are hereby appropriated and may be budgeted
15 and expended by the Mental Wellness Division for the purpose of
16 providing mental wellness services and programs to public safety
17 personnel and retirees thereof. Expenditures from the fund shall be
18 made upon warrants issued by the State Treasurer against claims
19 filed as prescribed by law with the Director of the Office of
20 Management and Enterprise Services for approval and payment.

21 SECTION 3. This act shall become effective November 1, 2025.

22 COMMITTEE REPORT BY: COMMITTEE ON PUBLIC SAFETY
23 February 11, 2025 - DO PASS
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